

1 THE COURT: Explain to me, that is on his
2 Facebook or MySpace, or is it a link to Satanism or Satanic
3 worship?

4 MR. REGAN: I was told as of last night
5 that it was on his Facebook.

6 THE COURT: State's position regarding
7 Exhibits 1 through 7.

8 MS. RASMUSSEN: The State's position on
9 Exhibits 1 through 7 are that they are not admissible. There
10 are specific instances of conduct that they are offering to
11 prove the trait of this individual's character. Therefore, it
12 wouldn't be admissible under the statute.

13 The State would also assert that these are items seeking
14 to be admitted as evidence by the defense. It was not
15 provided to the State as reciprocal discovery provided under
16 the statute.

17 First and foremost, this is evidence of specific acts,
18 specific posts that assuming they could lay the foundation for
19 it and tie them back to this individual, it's still not
20 admissible. It's not admissible at all. There's State law
21 that says the moral conduct is not admissible to prove at any
22 rate. This has nothing to do with the truth or veracity and
23 also foundation issue. The State hasn't seen this on Nick
24 Koch's Facebook page. It has not been able to locate any such
25 evidence as far as where it came from. That's also

1 questionable.

2 MR. REGAN: Judge, regarding the timing of
3 this argument, I had not received a request for discovery at
4 any time from the State, number one.

5 And number two, these are items that under the Rules of
6 Evidence are admissible, that I believe I would be allowed to
7 turn on the computer in the courtroom and go on the Internet
8 and explain and just have the jury see them just for
9 demonstrative purposes to give the jury something to handle.
10 It's not something we can download. It's out there in
11 cyberspace so we can make the appropriate appellate case if
12 these items are not admitted.

13 THE COURT: Regarding Exhibits 1 through 6,
14 I am not going to admit those. I think they are prohibited by
15 60-422, subsection (d), evidence of specific instances of
16 conduct relevant only to prove a trait that character shall be
17 inadmissible. I think it falls under that section.

18 I also think that 60-430, religious belief, covered that.
19 Every person has the privilege to refuse to disclose his or
20 her theological opinion or religious belief unless his or her
21 adherence or nonadherence to such an opinion or belief is
22 material to an issue in the action other than that of his or
23 her credibility as a witness.

24 I think that covers 1 through 6.

25 I am going to, outside the presence of the jury, allow

1 the State to make a record regarding these commandments. I
2 don't know, and I'm not sure even Counsel understands whether
3 this young man even knew that it was on that link.

4 There are tenets of religion that a person may or may not
5 be a part of that religion, and that person may or may not
6 believe certain tenets of that religion. So we're going to do
7 that outside of the presence of the jury because of the
8 volatile nature and because of the prejudicial effect he may
9 or may not know about that. So 1 through 6 will not be
10 admitted, but we'll take 7. Is this the State's first
11 witness?

12 MS. RASMUSSEN: Yes, it is.

13 THE COURT: Let's talk about the rest of
14 your exhibits that are objectionable.

15 MS. RASMUSSEN: Your Honor, I would note
16 that the State is objecting to -- in addition to the ones
17 we've already taken up, 8 through 10, so 8, 9 and 10, and then
18 13, 14 and 15.

19 THE COURT: Which ones do you not object
20 to?

21 MS. RASMUSSEN: Well, we have to find it
22 easier to say. Exhibits 10 and 11, the State plans to admit
23 the Sunflower House video, so I don't think that is going to
24 be an issue.

25 THE COURT: Do you mean 11 and 12, the

1 Sunflower House, number 10?

2 MS. RASMUSSEN: Yes, I'm so sorry, Your
3 Honor, I'm misreading. Exhibits 11 and 12, the State has no
4 objection to. The State has no objection to 16 through 22 as
5 well.

6 THE COURT: Okay. So 8 and 9, and do you
7 have those for me, Counsel?

8 MR. REGAN: I do, Judge. If I may explain,
9 Exhibit 8 is a copy of a page from Nick Koch's Facebook page.
10 Exhibit 9 is a blowup of what we believe are relevant portions
11 of it where there are two lines, and do you want me to read it
12 into the record, what it says?

13 THE COURT: Yes.

14 MR. REGAN: We believe what is relevant is
15 that Nick Koch on January 19th, 2009, at 4:08 p.m. said,
16 "Nate's just mad because his dad accidentally pulled his pubic
17 hairs when he was blowing him." And then Nick's friend Nate
18 says, "I'd back the fuck off if you know what's best for you."

19 THE COURT: And how are those relevant?

20 MR. REGAN: Judge, I think there's a
21 pattern that this boy had some type of odd infatuation with
22 sex of a homosexual nature, oral sex, homosexual nature and
23 sex between boys and dad figures. I think it's relevant and
24 goes to his credibility.

25 THE COURT: Can you bring these for me so

1 that I can see them again?

2 MR. REGAN: Certainly. May I approach?

3 THE COURT: Yes. State's position?

4 MS. RASMUSSEN: Your Honor, the State's

5 position is that they are absolutely irrelevant. Once again,

6 specific instances of conduct that they are offering to show a

7 trait of Nick Koch's character. It's not admissible.

8 THE COURT: I'm not going to allow 8 and 9.

9 I find they fall under the purview of 60-422(d).

10 Exhibit 10, that's the video; correct? Has the State

11 seen the video?

12 MS. RASMUSSEN: No.

13 MR. REGAN: Exhibit 10, Your Honor, is a

14 brief video with Mr. Koch and his girlfriend and another

15 friend sitting around with what appears to be a bong, and it

16 would appear that Mr. Koch on that videotape is simulating

17 masturbation, and then an act of him performing oral sex on an

18 imaginary object.

19 THE COURT: State's position?

20 MS. RASMUSSEN: Once again, the State's

21 position is this information is irrelevant, not admissible,

22 specific conduct.

23 MR. REGAN: Judge, we think it's relevant

24 to go over this boy's continuous infatuation with homosexual

25 sex.

1 THE COURT: I'm not going to allow that.
2 And these I believe are things that you were going to ask this
3 witness about. If I rule now that you cannot ask him about
4 those, you can make a further record later to establish a
5 foundation and try it that way. And my inclination, depending
6 on what it is, that does not sound to me to be relevant or
7 admissible under the statute, but for purposes right now this
8 is something that you may not ask him about.

9 MR. REGAN: I understand.

10 THE COURT: All right. Exhibits 11 and 12,
11 the State does not object to those. Exhibits 13, 14 and 15?

12 MR. REGAN: Yes. Judge, those are
13 photographs that we have had enlarged for jury purposes.
14 Here's an explanation of why we think they are relevant.

15 My client's son, Preston, who is a witness in this case,
16 as you're going to hear, and he has been a good friend of Nick
17 Koch's. They are on scouting outing together out at Philmont,
18 and they were the only two kids in a two-man pup tent, and the
19 only ones with access to each other's immediate belongings.

20 It's important to know that Scott Moore was not on that
21 trip. He was back here in Kansas City and not there.

22 After the gathering back home there was discovery that
23 someone had taken pictures of another boy's crotch, and it
24 would appear it was Nick Koch's crotch, to my witnesses
25 anyway.

1 Our evidence would be that this kid surreptitiously took
2 Preston's camera and took three pictures to get Preston in
3 trouble for having that stuff on the camera.

4 What is also relevant is pictures were taken on a digital
5 camera that has a cracked display, and that's the very camera
6 that Nick Koch describes that camera owned by the Moores that
7 the camera that Scott used to photograph him on that night.

8 THE COURT: I'm not going to allow you to
9 ask Nick Koch about these exhibits. They are exhibits closeup
10 of what? You don't know who it is. Unless you can through a
11 different witness give foundation, I don't see the relevance
12 at all. Pictures of someone's shorts, a closeup of someone's
13 shorts, I don't find that relevant or probative in any way.

14 MR. REGAN: Judge, Mr. Moore, young Mr.
15 Preston Moore believes that Nick Koch took his camera, and the
16 camera has a remote. If you put the camera down and take a
17 picture, he believes this boy without his knowledge and
18 consent took these pictures to get him in trouble or someone
19 else in trouble.

20 THE COURT: You can't ask Nick Koch about
21 them. I don't find them relevant.

22 MR. REGAN: Very good.

23 THE COURT: Exhibits 16 through 22, the
24 State has not objected to; is that correct?

25 MR. REGAN: I believe that's correct.

1 MS. RASMUSSEN: That's correct. And as for
2 23 through 28, we have told Mr. Regan that if those
3 individuals were to testify, that would be something that we
4 would agree would be admissible. But if those individuals
5 listed on each written statement do not testify, it's the
6 State's position that they will be hearsay. I think that's
7 something we can take up as we go along.

8 MR. REGAN: That's fair enough. I didn't
9 know who they were calling.

10 Judge, just a roadmap of the case, at some point in time
11 today or tomorrow can you give me a few minutes to make an
12 offer of proof with Nick Koch and Preston on some of the
13 things that you've excluded?

14 THE COURT: Yes, we can do that.

15 Before you start with evidence, your first witness, Ms.
16 Rasmussen, I am going to have you outside the presence of the
17 jury establish whether or not there is some tenet of his
18 religion about bearing false witness, whether it being a
19 commandment to bear false witness to establish that outside
20 the presence of the jury.

21 MS. RASMUSSEN: Okay. And, Your Honor, the
22 State will call Nick Koch. The State wants to bring him in
23 for that purpose.
24
25

1 NICHOLAS KOCH,
2 having been duly sworn to tell the truth, the whole truth and
3 nothing but the truth, testified as follows:

4 DIRECT EXAMINATION

5 BY MS. RASMUSSEN:

6 Q. Mr. Koch, we are outside the presence of the jury
7 with just a few questions before we bring them in. Can you
8 tell us what your full name is?

9 A. My name is Nicholas Martin Koch.

10 Q. And, Mr. Koch, is it okay if I call you Nick?

11 A. Yes.

12 Q. Nick, there have been some questions raised, come
13 up before this trial started and just now about your religion.
14 Are you a member of any religious group?

15 A. No, I am not.

16 Q. Okay. Have you in the past put anything on a
17 social media site such as MySpace or Facebook about other
18 religious or Satanic cults?

19 A. Kind of.

20 Q. Okay. Can you explain "kind of"?

21 A. I was in between religions, like I was just kind
22 of lost, and I didn't know who I was at the time. And it was
23 just a personal growth kind of thing.

24 Q. Okay. At the present time, do you adhere,
25 subscribe to any religious belief that requires you or

1 encourages you to bear witness, I guess I should say lie about
2 other people?

3 A. No.

4 MS. RASMUSSEN: I don't know if Mr.
5 Regan --

6 THE COURT: Do you want to cross-examine on
7 that?

8 MR. REGAN: Judge, may I ask, are you
9 having this area of inquiry if he's going to commence to take
10 the oath?

11 THE COURT: No, he can affirm regarding
12 Exhibit 7, and the tenet that you had proposed he had there
13 bearing false witness.

14 MR. REGAN: Are you using this testimony to
15 decide whether you're going to allow me to discuss Exhibit 7
16 in front of the jury?

17 THE COURT: Yes.

18 CROSS-EXAMINATION

19 BY MR. REGAN:

20 Q. I'm Mr. Moore's lawyer, and I have some questions
21 for you; all right?

22 A. Okay.

23 Q. You're relatively active in the social media;
24 correct?

25 A. Kind of, yes.

1 Q. You've got a Facebook and web page where you talk
2 with other kids?
3 A. Yes.
4 Q. And you allow others to come talk with you?
5 A. Yeah.
6 Q. And do you have a page or two that says things
7 that describe me?
8 A. Yeah.
9 Q. And have you posted photos on that page indicating
10 that you are a worshiper of Satan?
11 A. No.
12 Q. You haven't?
13 A. No.
14 Q. Has someone else put those things on your page
15 without you knowing about it?
16 A. I've had many people have access to my accounts,
17 and that's because they are friends, and I trusted them at the
18 time.
19 Q. Have you been a visitor to the site of the "Order
20 of Lucifer"?
21 A. No.
22 Q. Never?
23 A. Never.
24 Q. Are you linked currently on your MySpace or social
25 media to the "Order of Lucifer"?

1 A. I had a friend that was a member of it, and he
2 might have added me in a group.

3 Q. Have you looked at your own Internet presentation
4 and seen that you are linked to the "Order of Lucifer"?

5 A. I had been on my Facebook, yes, and I don't really
6 associate with my friends on Facebook. I used to.

7 Q. Do you consider yourself a member of the "Order of
8 Lucifer"?

9 A. No.

10 Q. Never?

11 A. No.

12 Q. You've never visited that site?

13 A. No.

14 Q. And we've got a retired FBI out in the hall who's
15 pretty good at investigating computers. If he looked, would
16 he find that you visited that site?

17 A. No, he would not.

18 MR. REGAN: May I approach, Your Honor, and
19 see the exhibits that you have?

20 THE COURT: Yes.

21 MR. REGAN: May I approach the witness,
22 Judge, for a minute?

23 THE COURT: Yes.

24 Q. (By Mr. Regan) Mr. Koch, let me show you what will
25 be marked for records purposes as Exhibit 1A. Have you seen

1 that before?

2 A. I have, yes.

3 Q. Is that posted on your web page?

4 A. It is.

5 MS. RASMUSSEN: Your Honor, I don't see a
6 1A on our exhibit list. But if we're referring back to 1, I
7 believe that's already been excluded, and the only thing that
8 should be addressed is Exhibit No. 7.

9 THE COURT: He can refer.

10 MR. REGAN: I'm making 1A, and I'll file 1
11 through 7 as well.

12 Q. (By Mr. Regan) Exhibit 1A, have you seen that
13 before?

14 A. Yes.

15 Q. Is that on your web page?

16 A. Yes.

17 Q. Is it on there right now?

18 A. Probably.

19 Q. Is that under there as "Nick Koch's pics.
20 Pictures that describe me"?

21 A. Yeah.

22 Q. One look and one would believe that this is what
23 describes you. That's what you're all about?

24 A. I posted that picture a long time ago, like two or
25 three years.

1 Q. But you didn't take it off as of last night, did
2 you?
3 A. No, I didn't.
4 Q. All right. Do you believe in what's stated here?
5 A. I thought it was kind of comical at the time.
6 Q. All right. Do you believe the following is
7 comical now? The belief that a cosmic Jewish zombie who was
8 his own father can make you live forever if you symbolically
9 eat his flesh and tell him you accept him as his master so he
10 can remove the evil source from your soul that is present in
11 humanity because a ribbed woman with a talking snake would eat
12 from a magical tree. That's comical?
13 A. At the time it was, now it's not.
14 Q. Let me show you Exhibit 2A. Have you seen that
15 before?
16 A. Yes.
17 Q. That's a photo that appears on your website right
18 now?
19 A. Yeah.
20 Q. That's Satan flying from heaven?
21 A. Yeah.
22 Q. Let me show you 3A. That's a photograph that
23 appears on your social media right now; correct?
24 A. Yeah.
25 Q. You put it up two and a half years ago?

1 A. Yeah.
2 Q. Right about the same time you called the cops on
3 Scott Moore?
4 A. I think, yeah.
5 Q. And you haven't taken it down?
6 A. No.
7 Q. And that's Satan holding two shiny swords; right?
8 A. Yeah.
9 Q. And that again, it is one of the pics that
10 describes you?
11 A. Yeah.
12 Q. You have 4A, is this a fair and accurate
13 photograph of a heavy metal Satan figures that appear on
14 social media?
15 A. Yeah.
16 Q. Did you put it up there two and a half years ago?
17 A. Yeah.
18 Q. It's up there right now?
19 A. Yeah.
20 Q. Under pics that describe you; right. Exhibit 5A,
21 that's a pentagram with Santa in the middle of it?
22 A. Uh-huh.
23 Q. That's an anti-Santa Claus devil worshipping?
24 A. I just thought it was funny at the time.
25 Q. Is that on your website social media?

1 A. Probably.
2 Q. It's been there two and a half years?
3 A. Yeah.
4 Q. Exhibit 6A, is that a fair and accurate photograph
5 of a photo that appears on your social media pics that
6 describes me. It's a photo of Lucifer with a robe and key?
7 A. Yeah.
8 Q. Is that a key to hell?
9 A. Yeah.
10 Q. Is that a key to hell?
11 A. I honestly don't know. I just liked the way the
12 picture looked.
13 Q. Let me show you Number 7. Have you seen this
14 before?
15 A. No.
16 Q. Never?
17 A. No.
18 Q. Have you ever seen this language before that says,
19 "Tenets of Lucifer: Thou shalt murder,
20 commit adultery, steal"?
21 A. I've seen text like that, but in the *Ten*
22 *Commandments*.
23 Q. You've seen this in the Ten Commandments?
24 A. Not like that because the way the language is
25 written.

1 Q. Do you see who rejoices in doing evil and
2 perverseness of evil. Have you seen that before?
3 A. No.
4 Q. Have you seen this before, "Whose ways are
5 crooked, and they froward in their path"?
6 A. Never seen those, no.
7 Q. Are you aware these are on your website on your
8 social media?
9 A. I was not aware, no.
10 Q. Do you believe many of these things?
11 A. I do not, no.
12 Q. Have you ever been?
13 A. I never have, no.
14 Q. Do you know what they are doing on your social
15 media?
16 A. They were probably a link that my friend put on
17 there.
18 Q. Which friend?
19 A. His name is Mike.
20 Q. Why would you leave it there?
21 A. Because I don't really go on my Facebook. I used
22 to, and I never really got into the whole Facebook thing. It
23 was kind of a go-to as things were happening during school and
24 whatnot.
25 Q. Have you been on your Facebook today?

1 A. Today, yes, I have.

2 Q. Have you been on it last night?

3 A. Last night, yes.

4 Q. You just said you don't go on it as much as I used

5 to?

6 A. I don't check out my profile. I sometimes talk

7 with friends. I don't, I only really access it through my

8 handheld devices so I can't access all the special features

9 that I could on a normal laptop or computer. I can't add

10 pictures, delete pictures, or anything like that. I can only

11 update statuses and send messages to other people.

12 MR. REGAN: That's all the questions I have

13 on this topic, Your Honor.

14 THE COURT: Anything further?

15 MS. RASMUSSEN: Your Honor, the State has

16 nothing further.

17 THE COURT: Thank you for your testimony.

18 You may step down. Is he going to be your first witness?

19 MS. RASMUSSEN: He will be my first

20 witness, and if we could leave him in here, my position would

21 be that Defense's Exhibit 7 is not admissible either. Mr.

22 Koch testified he had never seen that.

23 THE COURT: Seven is not going to be

24 admissible nor can you inquire about that topic with this

25 witness regarding Exhibits 1 through 7. Anything further on

1 that issue?

2 MS. RASMUSSEN: Nothing.

3 MR. REGAN: No.

4 THE COURT: Let's bring the jury in.

5 (Whereupon, the jury came in at 1:50 p.m.)

6 THE COURT: We're on the record in State

7 versus Moore 10CR2633. The jury is in place after our lunch

8 recess. The parties are here as before, including the

9 defendant with his counsel. We are now ready for presentation

10 of evidence by the State. Your first witness, Ms. Rasmussen.

11 MS. RASMUSSEN: Your Honor, the State calls

12 Nicholas Koch.

13 **NICHOLAS MARTIN KOCH,**

14 **having duly affirmed to tell the truth, the whole truth and**

15 **nothing but the truth, testified as follows:**

16 **DIRECT EXAMINATION**

17 **BY MS. RASMUSSEN:**

18 Q. What is your full name?

19 A. My name is Nicholas Martin Koch.

20 Q. Nicholas Martin Koch?

21 A. Yes.

22 Q. Is it okay if I call you Nick?

23 A. Yes.

24 Q. What is your birth date?

25 A. My birth date is June 20th of 1993.

1 Q. And how old are you today?
2 A. I'm 19 years old.
3 Q. Now, Nick, do you know Scott Moore and his family?
4 A. Yes.
5 Q. Do you see Scott in the courtroom today?
6 A. Yes, I do.
7 Q. Could you please point to him and tell me
8 something he's wearing?
9 A. He's right there. He is wearing a tan jacket with
10 a tie and a white shirt.
11 Q. You just pointed out the defendant. How did you
12 first meet the defendant and his family?
13 A. I met him through scouting with Troop 37.
14 Q. Okay. Was he a scoutmaster for a while?
15 A. Yes, he was.
16 Q. And you were pretty big into Scouts?
17 A. I was, yes.
18 Q. How long were you involved with Scouts?
19 A. I was involved with Scouts for quite some time
20 from Cub Scouts all the way through Eagle Scouts.
21 Q. Did you obtain your Eagle Scout rank?
22 A. I did, yes.
23 Q. And what do you have to do to obtain that rank?
24 A. You have to do community service, a project that
25 involves community service to help out the community in some

1 way, shape or form and my project was to build a three-bin
2 compost pile at Deanna Rose Children's Farmstead.

3 Q. Now, does Scott Moore have any children?

4 A. He does have a son and daughter.

5 Q. What is his son's name?

6 A. His son's name is Preston Moore.

7 Q. This is going to seem like a silly question. You
8 aren't married to Scott Moore?

9 A. No, I am not.

10 Q. Does Scott Moore have a wife?

11 A. Yes.

12 Q. Is his son Preston, is he the same age as you, a
13 little older or younger?

14 A. He's roughly the same age, give one or two years.

15 Q. Was he also in Boy Scouts?

16 A. Yes.

17 Q. Did you become friends through that?

18 A. We were friends throughout scouting, yes.

19 Q. I want to go back to May of 2010, specifically the
20 night of May 14th, 2010. Was there something that happened
21 between that night and the next morning that eventually led to
22 you contacting the police?

23 A. There was, yes.

24 Q. How old were you at the time?

25 A. I was sixteen.